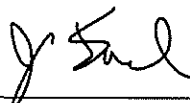


FIRST ENDORSEMENT

Executive Director, Jonathan Darche, Civilian Complaint Review Board to Deputy Commissioner Amy Litwin, Department Advocate's Office, March 13, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-23937 against Police Officer Robert Vargas, Tax Registry No. 963309. The case was conferenced on February 21, 2023, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of Command Discipline Schedule (B) forfeiture of TEN (10) vacation days.



Jonathan Darche, Executive Director
New York City Civilian Complaint Review Board

DISAPPROVED

DEC 05, 2023

EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2021-23937
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, VARGAS	FIRST ROBERT	M.I. M	COMMAND GUN VIOL SUPP DIV Z2
SHIELD NO. 24771	TAX REGISTRY NO. 963309	SOCIAL SECURITY NO.		DATE APPOINTED 01/04/2017
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Robert Vargas, on or about July 24, 2019, at approximately 2230, while assigned to GVSD Z2 and on duty, inside of § 87(2)(b) Bronx County, made offensive remarks to § 87(2)(b) based on perceived mental health status, asking her if she suffered from mental disabilities.	DISMISSED	B - COMMAND DISCIPLINE .00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Police Officer Robert Vargas, on or about July 24, 2019, at approximately 2230, while assigned to GVSD Z2 and on duty, inside of § 87(2)(b) Bronx County, was discourteous, in that he stated, "you don't? Because everything you're doing now is showing that you do. It's not normal to be like this," to § 87(2)(b) without sufficient legal authority.	DISMISSED	


FIRST DEPUTY COMMISSIONER

6/1/23
DATE

POLICE COMMISSIONER'S APPROVAL

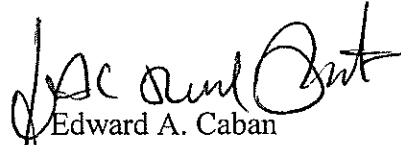
- ☐ Approved
☒ Disapproved
☐ Other Action (Describe)


POLICE COMMISSIONER

12/5/23
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, June 1, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2021-23937 against Detective Robert Vargas, Tax # 963309, for the forfeiture of ten (10) vacation days; I do not concur. The negotiated penalty consists of the dismissal of Charges and Specification and the issuance of a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days, which is consistent with the Disciplinary System Penalty Guidelines (Mitigated penalty running concurrently). Additionally, Assistant Deputy Commissioner Trials Jeff S. Adler reviewed this case during the settlement conference and recommended five (5) vacation days for the proposed settlement. I concur with the recommendation of dismissal of Charges and Specifications and issuance of a Schedule "B" Command Discipline and five (5) vacation days. **RECOMMEND APPROVAL.**

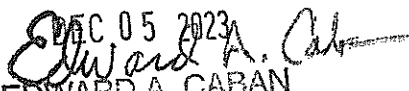


Edward A. Caban

FIRST DEPUTY COMMISSIONER

EAC/mc

APPROVED

DEC 05 2023

EDWARD A. CABAN
POLICE COMMISSIONER